

implicitly acknowledges that equitable estoppel could be applied to alter the accrual date.

Generally speaking, four elements must be present in order to apply the doctrine of equitable estoppel: (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel had a right to believe it was so intended; (3) the other party must be ignorant of the true state of facts; and (4) he must rely upon the conduct to his injury.’ ’

Where, as here, a party seeks to invoke the doctrine of equitable estoppel against a governmental entity, an additional element applies. That is, the government may not be bound by an equitable estoppel in the manner as a private party unless, ‘in the considered view of a court of equity, the injustice which would result from a failure to uphold an estoppel is of sufficient dimension to justify any effect upon public interest or policy which would result from the raising of an estoppel.’ [Citation.]” (*Krolkowski v. San Diego City Employees’ Retirement System* (2018) 24 Cal.App.5th 537, 564-565.)

Here, even if Petitioner Samec could establish the first four elements (which is not apparent) the court finds that an injustice would not result from a failure to uphold an estoppel. Bottom line, the County is immune from suit for prosecutorial misconduct even should Petitioner Samec be allowed to file a late claim.

“A public employee is not liable for injury caused by his instituting or prosecuting any judicial or administrative proceeding within the scope of employment, even if they act maliciously and without probable cause.” (Gov. Code §821.6.) When this provision of the Government Claims Act immunizing public employees from claims of injury caused by wrongful prosecution applies, the immunity is absolute, meaning that the immunity is not conditioned on a showing that the defendant acted in a reasonable or procedurally proper manner, or any similar requirement. (*Leon v. County of Riverside* (2023) 14 Cal.5th 910, 922.)

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CASE #	CASE NAME	HEARING NAME
CVME2611151	COUNTY OF RIVERSIDE VS SOUVANNASANE	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Request for Judicial Notice is Granted. Unopposed Preliminary Injunction is Granted.